

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

7. S-CV-0055881 ZIERMAN, JEANNINE v. ANTISDEL, DENISE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Defendant Braulio Escoto's Demurrer to Plaintiff's Complaint

Defendant demurs to plaintiffs' complaint on the grounds the complaint does not allege facts sufficient to state the causes of action and the complaint is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

First Cause of Action—Dependent Adult Abuse and Neglect

Abuse against an elder or dependent adult includes, among others, "neglect, abandonment, . . . or other treatment with resulting physical harm or pain or mental suffering." (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.)

Neglect is defined as either "(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise." (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

- (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.
- (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.
- (3) Failure to protect from health and safety hazards.

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- (4) Failure to prevent malnutrition or dehydration.
 - (5) Substantial inability or failure of an elder or dependent adult to manage their own finances.
 - (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.
- (*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].)

“Abandonment means the desertion or willful forsaking of an elder or a dependent adult by anyone having care or custody of that person under circumstances in which a reasonable person would continue to provide care and custody.” (Welf. & Inst. Code, § 15610.05.)

Physical abuse means assault, battery, assault with a deadly weapon or force likely to produce great bodily injury, unreasonable physical constraint or prolonged or continual deprivation of food and water, sexual assault, or use of a physical or chemical restrain or psychotropic medication in various scenarios. (Welf. & Inst. Code, § 15610.63.)

On the other hand, “Mental suffering means fear, agitation, confusion, severe depression, or other forms of serious emotional distress that is brought about by forms of intimidating behavior, threats, harassment, or by deceptive acts performed

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or false or misleading statements made with malicious intent to agitate, confuse, frighten, or cause severe depression or serious emotional distress of the elder or dependent adult. (Welf. & Inst. Code, § 15610.53.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the first cause of action for dependent adult abuse and neglect. Accordingly, the demurrer is overruled as to the first cause of action.

Second Cause of Action—Financial Elder Abuse

Abuse against an elder or dependent adult includes, among others, financial abuse. (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.) Financial abuse occurs when an individual or entity does any of the following

- (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
- (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.
- (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.
- (b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.
- (c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

(*Id.* at § 15610.30.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the second cause of action for financial elder abuse. Accordingly, the demurrer is overruled as to the second cause of action.

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Third Cause of Action—Breach of Fiduciary Duty

The elements for a breach of fiduciary duty claim are: (1) existence of a fiduciary relationship, (2) breach, and (3) damages proximately caused by the breach. (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.) Fiduciary relationships exist as a matter of law in various legal relationships. (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 632.) One such fiduciary relationship is between spouses when entering into transactions with one another. (Fam. Code, § 721; *Lintz v. Lintz* (2014) 222 Cal.App.4th 1346, 1353.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the third cause of action for breach of fiduciary duty. Accordingly, the demurrer is overruled as to the third cause of action.

Fourth Cause of Action—Aiding and Abetting

A cause of action for aiding and abetting requires plaintiff to establish the defendant “(a) knows the other’s conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person’s own conduct, separately considered, constitutes a breach of duty to the third person.” (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the fourth cause of action for aiding and abetting. Accordingly, the demurrer is overruled as to the fourth cause of action.

Fifth Cause of Action—Constructive Trust

Constructive trust is not a cause of action. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76.) Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

Sixth Cause of Action—Accounting

An accounting cause of action requires plaintiff to show “that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting.” (*Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179.) Notably, “a fiduciary relationship

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between the parties is not required to state a cause of action for accounting. All that is required is that some relationship exists that requires an accounting.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state an accounting cause of action. (Fam. Code, §§ 712, 1101.) Accordingly, the demurrer is overruled as to the sixth cause of action.

In sum, the demurrer is overruled as to the first through fourth and sixth causes of action and sustained with leave to amend as to the fifth cause of action. The complaint is also not uncertain and overruled on those grounds. Plaintiffs shall file and serve an amended complaint on or before **August 3, 2026**.

8. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to set aside default is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0056860 ELLIOT, LISA v. VOP SIERRA RIDGE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3**.

Defendants’ Demurrer to Complaint

Defendants demurs to plaintiffs’ complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action and the third and fourth causes of action are duplicative. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)